

Amendment No. 1 to SB1912

White
Signature of Sponsor

AMEND Senate Bill No. 1912*

House Bill No. 1886

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 49-1-221, is amended by deleting the section.

SECTION 2. Tennessee Code Annotated, Title 49, Chapter 6, Part 3, is amended by adding the following as a new section:

(a)

(1) Each LEA and public charter school shall adopt an internet acceptable use policy. At a minimum, the policy must establish:

(A) Internet safety protocols for students that are integrated into the LEA's or public charter school's instructional program;

(B) Guidelines for effective communication with parents to raise awareness of internet safety using existing avenues of communication, such as parent-teacher conferences;

(C) Rules designed to protect the safety and security of students who use the internet access provided by the LEA or public charter school to access email, chat rooms, or any other form of direct, electronic communication online;

(D) Safeguards to prevent students from using the internet access provided by the LEA or public charter school to access websites, web applications, or software that does not protect students against the disclosure, use, or dissemination of their personal information; and

(E) Limitations on accessing websites through the internet provided by the LEA or public charter school by only allowing access to websites that are deemed by the LEA or public charter school as acceptable to access. An LEA or public charter school shall not deem a website acceptable for purposes of this subdivision (a)(1)(E) if the website's content:

(i) Is deemed harmful to students by the LEA or public charter school;

(ii) Is pornographic or obscene;

(iii) Is violent or frightening for the age or maturity level of the student who may access the content, and the LEA or public charter school determines that the content has no educational value;

(iv) Promotes self-harm; or

(v) Is harmful to minors, as defined in § 39-17-901.

(2) An internet acceptable use policy may include other terms, conditions, and requirements deemed appropriate by the adopting LEA or public charter school, such as requiring written parental authorization for internet use by juveniles or differentiating acceptable uses of the internet among elementary, middle, and high school students.

(3) Each LEA and public charter school shall evaluate its internet acceptable use policy at least twice each year, and update the policy, if necessary.

(4) An LEA or public charter school may collaborate with other LEAs and public charter schools when developing an internet acceptable use policy.

(b) The director of schools or the director of the public charter school shall take all steps appropriate and necessary to implement and enforce the LEA's or public charter school's internet acceptable use policy.

(c)

(1) A provider of digital or online resources, with which an LEA, public charter school, or state agency contracts for the provision of digital or online materials created and marketed for pre-kindergarten through grade twelve (pre-K-12) school use, shall:

(A) Verify that the digital or online materials it provides to the LEA, public charter school, or state agency do not violate § 39-17-902;

(B) Filter, block, or otherwise prevent access through any provided digital or online materials to:

(i) Pornography and obscenity;

(ii) Content that is violent or frightening for the age or maturity level of the student who may access the content, if the LEA, public charter school, or state agency, as applicable, determines that the content has no educational value; and

(iii) Content that promotes self-harm;

(C) Verify, in writing, that the provider's technology prevents a user from sending, receiving, viewing, or downloading materials that are harmful to minors, as defined in § 39-17-901; and

(D) Remove, upon the request of the contracting LEA, public charter school, or state agency, access to digital or online materials for ages or audiences that the contracting LEA, public charter school, or state agency has determined to be age- or audience-inappropriate. A provider must remove access to any digital or online material described in this subdivision (c)(1)(D) within one (1) business day of the provider's

receipt of the contracting LEA's, public charter school's, or state agency's request for removal, unless the deadline for removal of the material is extended by mutual consent of the contracting parties.

(2) An LEA, public charter school, or state agency that contracts with a third party for the provision of digital or online materials that are created and marketed for pre-kindergarten through grade twelve (pre-K-12) school use shall adopt and implement a policy that establishes a process for a person to file a complaint with an LEA, public charter school, or state agency that is alleged to be using a material in violation of subdivision (c)(1). The process established pursuant to this subdivision (c)(2) must require an LEA, public charter school, or state agency that receives a complaint to timely review the complaint and determine whether further action is necessary.

(3) This subsection (c) does not apply to medical resources.

(d) An LEA or public charter school may create an email address for students in grades pre-kindergarten through five (pre-K-5) for the purpose of using the email address as a data point to identify the student in security or grading software. An LEA or public charter school shall not allow a student in any of the grades pre-kindergarten through five (pre-K-5) to access an email address that is created for the student by the LEA or public charter school for the student to transmit or receive emails using the email address.

(e) If a student under eighteen (18) years of age accesses a website using the internet access provided by the LEA or public charter school in violation of the LEA's or public charter school's internet acceptable use policy, then the LEA or public charter school shall notify the student's parent or guardian of the prohibited access immediately upon notice to the LEA or public charter school.

(f) This section does not abridge or impair a contract or agreement entered into before July 1, 2027. Any such contract or agreement remains in full force and effect until the expiration of the contract or agreement.

SECTION 3. For purposes of adopting policies, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2027, the public welfare requiring it, and applies to the 2027-2028 school year and each school year thereafter.